

SYNTHETIC COUNTERFACTUAL APPELLATE BRANCH — NEVER OCCURRED ON
THE ACTUAL DOCKET — ALL FACTS AND IDENTIFIERS ARE FICTIONAL

UNITED STATES COURT OF APPEALS FOR THE FOURTH CIRCUIT

Leora Benton v. Blue Cedar Compliance, Inc.

No. SYN-CA4-26-CV-4101-CF-NEVER-OCCURRED

Counterfactual Timely Petition for Panel and En Banc Rehearing

Relief requested

Filed June 25, 2026.

Blue Cedar Compliance, Inc. petitions for panel rehearing and rehearing en banc of the June 15 opinion and judgment. The petition is filed within fourteen days of judgment. It challenges only the decision vacating summary judgment on Leora Benton's Title VII retaliation claim and the resulting remand. Blue Cedar does not seek reconsideration of the separate holding affirming the narrow exclusion of the materially new subject in Tessa Wynn's declaration.

The panel correctly reviewed summary judgment de novo and recognized that retaliation must be a but-for cause at the final stage of the burden-shifting framework. Blue Cedar submits, however, that the opinion treated a collection of debatable business judgments as sufficient proof of retaliatory causation even though the admitted record contains no motive statement and documents a genuine company-wide reduction. Rehearing should restore the district court's judgment or clarify the evidentiary connection required before process irregularities permit an ultimate but-for finding.

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Question presented and standard

The question presented is whether knowledge and close timing, combined with disagreements about calibration and operational criteria, create a triable Title VII retaliation claim when contemporaneous records establish an undisputed savings target and no admitted evidence connects the protected activity to the final selection. Blue Cedar contends that the panel's answer weakens the distinction between a prima-facie inference and the ultimate proof required at pretext.

Panel rehearing is warranted because the opinion overlooked the causal gap identified by the district court. En banc consideration is warranted because allowing suspicion about business rigor to substitute for evidence of the prohibited reason would affect reduction-in-force cases throughout the circuit. Blue Cedar does not ask the court to weigh credibility or adopt its preferred business judgment. It asks the court to require evidence from which a reasonable jury could find that, absent Benton's protected activity, Pike would not have selected her. The admitted record, viewed favorably to Benton, does not supply that link.

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Genuine reduction and decision structure

Finance established an annual savings target of \$612,000 before the final selection. The covered plan involved twenty-three authorized positions, including two vacancies. The approved scenario eliminated five filled positions and both vacancies and projected \$618,400 in savings. Benton accepts that the target was real, that positions other than hers were eliminated, and that the company reduced its filled workforce. Her duties were redistributed rather than assigned to a newly hired replacement.

Pike held final decision authority. The workbook identified alternative combinations, but each preserved different functions and relied on an expense consolidation outside the position-savings total. Pike testified that he selected the approved scenario to preserve continuity, travel capacity, and automation support while exceeding the target. Those judgments may be disputed, and another decisionmaker might have selected differently. Rehearing is necessary, Blue Cedar argues, because evidence that discretion existed does not by itself show that the discretion was exercised because Benton complained or filed a charge.

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Knowledge and temporal proximity

The company does not seek rehearing of the prima-facie determination. The record shows that Pike received the EEOC materials, opened the routed packet, responded to a preservation request, attended a related meeting, and knew before March 24 that Benton had raised an assignment concern and that an EEOC matter existed. The workbook opened shortly after receipt, and termination occurred six weeks later. Those facts permit the initial causal inference recognized in the opinion.

The error arises at the ultimate stage. Knowledge is necessary to a finding of retaliatory purpose, but it is not proof that the decisionmaker used the information. Close timing can reinforce other evidence, but the same interval also contained a documented company-wide savings process affecting seven positions. No admitted statement by Pike links his selection to the complaint or charge. By carrying knowledge and timing forward without an additional motive connection, the opinion permits the prima-facie showing to do work that the but-for standard reserves for proof of pretext and actual causation.

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Calibration and comparator evidence

Benton's imported score decreased during calibration, while retained managers received credits or exceptions. Solis recorded variance concerns, and Pike approved the final values. Blue Cedar recognizes that those facts allow criticism of consistency and require the evidence to be viewed favorably to Benton. The workbook nevertheless preserved every change, the minutes identified the dimensions discussed, and the comparators carried different portfolio responsibilities that Pike chose to retain.

No admitted evidence shows that a score changed in response to Benton's protected activity. The late Wynn subject that might have supplied a motive-related statement was excluded, and the June 15 opinion affirmed that ruling. Wynn's remaining testimony concerns comparator duties and Northline transition work, not a retaliatory instruction. The opinion thus combines unequal treatment with knowledge and infers prohibited purpose without evidence that the two were connected. Rehearing should hold that a disputed calibration process can support pretext only when the record reasonably ties its irregularity to the protected trait or activity at issue.

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Alternatives and explanations

The alternative scenarios show that arithmetic did not force Benton's selection. Each alternative, however, changed which manager and operational function would be removed, and each needed a separately modeled expense consolidation to reach the target. Pike's rejection of those combinations may be second-guessed, but the availability of another lawful choice does not identify retaliation as the reason for the choice made.

Nor did Blue Cedar replace its contemporaneous reason. The termination letter referred to budget reduction and redistribution of redundant management work. The workbook and March communications addressed savings, continuity, travel, automation, and coverage. Later explanations supplied more detail about completion, availability, and client confidence, with Pike explaining that client confidence referred to continuity rather than misconduct. The absence of a documented client complaint may weaken that detail, but it does not contradict the coverage rationale recorded before termination. The panel should reconsider whether elaboration within the same operational account can reasonably establish that the account concealed retaliation.

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Cumulative proof and but-for causation

Blue Cedar agrees that evidence must be considered together. The combined record shows protected activity, knowledge, a six-week interval, score changes, comparator credits, alternatives, variance flags, redistributed duties, and explanations of differing specificity. It also shows a genuine savings target, a broader reduction, preserved version history, contemporaneous operational criteria, and no admitted retaliatory statement. Considering both sides of that record while drawing reasonable inferences for Benton does not permit the court to ignore the missing causal connection.

Suspicion that a process was imperfect is not a reasonable finding that retaliation was the real reason. A jury could prefer a different scoring window, credit Benton's experience more heavily, or reject Pike's assessment of coverage. Those conclusions would establish neither retaliatory motive nor but-for causation. The panel's contrary result risks allowing any documented inconsistency following protected activity to reach trial. Rehearing should enforce the requirement that the evidence support the prohibited explanation, not merely cast doubt on the wisdom of the employer's choice.

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Conclusion and service

Blue Cedar asks the panel to rehear the appeal, withdraw the portion of the June 15 opinion vacating summary judgment, and affirm the district court's final judgment. Alternatively, it asks the active court to grant rehearing en banc on the relationship between prima-facie timing evidence and ultimate but-for proof in a documented reduction in force. The company requests no change to the holding affirming exclusion of Wynn's late declaration and no expansion of that evidentiary order.

Counsel certifies that this petition was filed electronically and served on Benton's counsel on June 25, 2026. It relies on the existing joint appendix, briefs, opinion, judgment, and cited authorities. It presents no new evidence and requests no factual finding by the appellate court. The filing date precedes the June 29 rehearing deadline. Pending disposition, the clerk should calculate mandate under the rules applicable to a timely rehearing petition and any order actually entered by the court.